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Case Number: 25PSCV00810 Hearing Date: September 23, 2026 Dept: G

Plaintiff/Petitioner

Crystal Casas's Petition for Approval of Compromise of Claim or Action or
Disposition of Proceeds of Judgment for Plaintiff/Claimant Maxwell Laguna, a
Minor

Respondent:

NO OPPOSITION

Plaintiff/Petitioner

Crystal Casas's Petition for Approval of Compromise of Claim or Action or
Disposition of Proceeds of Judgment for Plaintiff/Claimant Giovanni Bolagh, a
Minor

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff/Petitioner

Crystal Casas's Petition for Approval of Compromise of Claim or Action or
Disposition of Proceeds of Judgment for Plaintiff/Claimant Maxwell Laguna, a
Minor is DENIED WITHOUT PREJUDICE.

Plaintiff/Petitioner

Crystal Casas's Petition for Approval of Compromise of Claim or Action or
Disposition of Proceeds of Judgment for Plaintiff/Claimant Giovanni Bolagh, a
Minor is DENIED WITHOUT PREJUDICE.

BACKGROUND

This

is a personal injury action arising from a motor vehicle collision. On April 29, 2023, defendant Alexander Daniel Malkl (Malkl) allegedly drove a motor vehicle and injured plaintiffs/claimants Maxwell Laguna (Laguna) and Giovanni Bolagh (Bolagh), the minor children of plaintiff/petitioner Crystal Casas (Casas).

Malkl and defendant Carol Anderson (collectively, Defendants) allegedly co-own the vehicle that caused the injuries.

On

March 10, 2025, Casas, Laguna, and Bolagh (collectively, Plaintiffs) filed the Complaint, alleging causes of action for (1) motor vehicle and (2) negligence.

On

April 16, 2026, the parties informed the court that they settled the case.

On

September 4, 2026, Casas filed these petitions for approval of minor's compromise, which are unopposed.

This

case is set for an order to show cause re: dismissal (settlement) and a hearing on the petitions on September 23, 2026.

ANALYSIS

Casas

seeks the court's approval of a settlement reached between Plaintiffs and Defendants. For the following reasons, the petitions are DENIED.

Legal

Standard

An

enforceable settlement of a minor's or incompetent's claim can only be consummated with court approval. (Prob.

Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372.) For this purpose, a petition for approval must be presented to the court, and until it is granted, there is no final

settlement. (*Scruton v. Korean Air Lines Co.* (1995) 39 Cal.App.4th 1596, 1603–1606.) Any settlement agreement therefore is voidable by the minor's guardian ad litem. (Id. at 1606.)

Probate

Code section 3600 et seq. governs how the settlement proceeds are to be paid. Pursuant to Probate Code section 3601, the order shall approve payment of reasonable expenses from the settlement as follows:

The court making the order or giving the judgment referred to in Section 3600, as a part thereof, shall make a further order authorizing and directing that such reasonable expenses (medical or otherwise and including reimbursement to a parent, guardian, or conservator), costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or incompetent person. (Prob. Code, § 3601, subd. (a).)

In cases pursuant to Probate Code section 3601, "unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability." (Cal. Rules of Court, rule 7.955(a)(1).) In doing so, "[t]he court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events." (Cal. Rules of Court, rule 7.955(a)(2).)

Discussion

Pursuant

to the settlement agreement reached between the parties, Defendants agree to pay a total of \$46,000.00, including \$25,000.00 to Casas, \$13,000.00 to Laguna, and \$8,000.00 to Bolagh. (See Pet.

Re: Laguna, ¶¶ 10–11; see also Pet. Re: Bolagh, ¶¶ 10–11.) The petition for Laguna requests that \$2,634.14 be used for medical expenses, \$3,250.00 be used for attorney’s fees, \$1,312.66 be used for costs, and \$5,803.20 for Laguna.

(See Pet. Re: Laguna, ¶¶ 12–16.)

The petition for Bolagh requests that \$750.00 be used for medical expenses, \$2,000.00 be used for attorney’s fees, \$1,478.16 be used for costs, and \$3,771.84 for Bolagh. (See Pet.

Re: Bolagh, ¶¶ 12–16.)

“In

determining whether to grant a guardian ad litem’s petition to approve a settlement of the ward’s claims, a court must determine whether it is reasonable and in the minor’s best interest.”

(Chui v. Chui (2022) 75 Cal.App.5th 873, 899.) Generally, courts must consider the following factors: 1) the circumstances of the accident or other incident giving rise to the litigation, particularly the facts bearing on the payor’s potential liability and the minor’s damages; 2) the amount of the proposed settlement; 3) how the settlement will be paid (e.g. in a lump sum or via an annuity); 4) the nature of the injury and the minor’s current medical status and prognosis; and 5) the amount of attorney’s fees and other transaction costs being requested. (See, e.g., Kostakos v. Holewinski (Dec. 6, 2019, 37-2018-00029286-CU-PA-CTL) [nonpub. opn.], applying Cal. Rules of Court, rule 7.950.)

Medical

Expenses

Regarding

medical expenses, the petition for Laguna reflects that Cedarpointe Chiropractic Group (Cedarpointe) charged \$2,675.00 and there was a negotiated reduction of \$675.00, leaving \$2,000.00 to be paid from the settlement. (See Pet. Re: Laguna, ¶ 12.b(5)(b)(i).) The petition for Laguna also reflects that the California Department of Health Care Services charged \$845.52, and there was a negotiated reduction of \$211.39, and Medi-Cal seeks reimbursement for the remaining \$634.14. (See Pet. Re: Laguna, ¶¶ 12.b(4)(c), 12.b(5)(b)(ii); but see Pet. Re: Laguna, ¶ 12.b(4), failing to specify the amount paid by Medi-Cal.) The petition for Laguna states that there are \$3,520.52 in statutory or contractual liens but does not provide for any liens in the appropriate paragraph. (Compare Pet. Re: Laguna, ¶ 12.a(5) with Pet. Re: Laguna, ¶ 12.b(5)(a).) Based on this information, the court finds

that the guardian ad litem fails to properly account for the requested medical expenses for Laguna.

The

petition for Bolagh reflects that Cedarpointe charged \$1,175.00 and there was a negotiated reduction of \$425.00, leaving \$750.00 to be paid from the settlement. (See Pet. Re: Bolagh, ¶ 12b(5)(b)(i).) The petition for Bolagh states that there are \$750.00 in statutory or contractual liens but also marks that “[t]here are no statutory or contractual liens for payment of [Bolagh’s] medical expenses.” (Compare Pet. Re: Bolagh, ¶ 12.a(5) with Pet. Re: Bolagh, ¶ 12.b(5)(a)(i).)

Based on this information, the court finds that the guardian ad litem fails to properly account for the requested medical expenses for Bolagh.

Attorney’s

Fees

Regarding

attorney’s fees, Casas executed a retainer agreement with Plaintiffs’ counsel for a 40% contingency fee. (See Pet.

Re: Laguna, Attach. 17a; see also Pet. Re: Bolagh, Attach. 17a.) The requested attorney’s fee is less than 40% of Laguna and Bolagh’s gross recovery after costs. (See Pet. Re: Laguna, ¶¶ 13a, 16a, 16c; see also Pet. Re: Bolagh, ¶¶ 13a, 16a, 16c.) Counsel’s declaration includes details about their experience and their work in this litigation. (See Pet. Re: Laguna, Attach. 13a, ¶ 3; see Pet. Re: Bolagh, Attach. 13a, ¶ 3.) After consideration of this evidence, the court finds that the requested attorney’s fees are reasonable.

Litigation Costs

Regarding

litigation costs, the petition for Laguna reflects litigation costs of \$1,312.66, and the petition for Bolagh reflects litigation costs of \$1,478.16. (See Pet. Re: Laguna, ¶¶ 13b, 16d; see also Pet. Re: Bolagh, ¶¶ 13b, 16d.) Upon review, the court finds that the litigation costs were reasonably incurred.

The

remaining \$5,803.20 for Laguna and \$3,771.84 for Bolagh will be deposited in insured accounts in one or more financial institutions in this state, subject to withdrawal only on authorization of the court. (See Pet. Re: Laguna, ¶ 18b(2); see also Pet. Re: Edgar M. Gomez, ¶ 18b(2).) Specifically, the funds will be deposited in a Wells Fargo Bank branch

in Pasadena, California. (See Pet.

Re: Laguna, Attach. 18b(2); see also Pet. Re: Bolagh, Attach.

18b(2).) Upon review, the court finds

that the amount awarded to Laguna and Bolagh to be reasonable and finds the disposition of the funds is proper.

Nevertheless,

the petitions are defective because they did not properly account for medical expenses. Accordingly, the petitions to

confirm minor's compromise are DENIED, and Casas is ORDERED to FILE corrected MC-350 PETITIONS.

CONCLUSION

For

these reasons, the petitions for approval of minor's compromise are DENIED WITHOUT PREJUDICE.

Plaintiff/petitioner Crystal Casas is ORDERED to FILE corrected MC-350 PETITIONS.